

25STCV33773 25STCV33773

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-07

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Case Number: 25STCV33773 Hearing Date: July 7, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Plaintiff's Motion

for Order Allowing Service of Corporate Defendant Davontay Robins, LLC, via the Secretary of State.

Plaintiff's Motion for Order Allowing Service of Corporate

Defendant Davontay Robins, LLC, via the Secretary of State is denied without prejudice.

BACKGROUND

Plaintiff Kristopher Edwards, individually and as successor in interest to Erika Edwards (Plaintiff), filed this action against Davontay Bernie Robins (Robins), Tanooa Sparks, Davontay Robins, LLC (the LLC), All Together We Can, LLC, Alls Together We Can, LLC, All Together We Can, LLC, All Together We Can & Together We Can Inc., and Raymond Evans (collectively "Defendants").

Plaintiff alleges that on June 29, 2025, Robins drove a vehicle at an excessive speed on Sunset Boulevard, struck and killed pedestrian Erika Edwards, and fled the scene. (Compl. ¶¶ 1-3.) Plaintiff alleges that Robins was acting within the course and scope of his employment or agency for the LLC and others, and that the LLC is liable under principles of respondeat superior and agency. (Compl. ¶¶ 11, 19.) Erika Edwards was Plaintiff's wife. (Compl. ¶ 22.)

The causes of action are: (1) Negligence and Negligence Per Se (Wrongful Death); and (2) Survival Action (Negligence, Recklessness, and Wrongful Conduct).

Plaintiff filed the Motion for Order Allowing Service of Corporate Defendant Davontay Robins, LLC, via the Secretary of State (the Motion). No Defendant filed an Opposition.

LEGAL STANDARD

Corporations Code section 17701.16 governs service of process on a limited liability company. (Corp. Code, § 17701.16, subd. (a).) Personal delivery of process to the individual the company has designated as its agent for service of process constitutes valid service. (Corp. Code, § 17701.16, subd. (b).)

When the designated agent cannot be reached, subdivision (c) permits service on the Secretary of State on a two-part showing. First, the agent must have resigned and not been replaced, or the designated agent must be one who cannot with reasonable diligence be found at the address designated for personal delivery of the process. Second, it must be shown by affidavit to the satisfaction of the Court that process cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Code of Civil Procedure sections 415.10, 415.20, subdivision (a), or 415.30, subdivision (a). (Corp. Code, § 17701.16, subd. (c).) On the required showing, the Court may order service by hand delivery to the Secretary of State. (Ibid.)

Reasonable diligence denotes “a thorough, systematic investigation and inquiry conducted in good faith.” (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.) The measure is whether the party took the steps a reasonable person who truly desired to give notice would have taken under the circumstances. (Donel, Inc. v. Badalian (1978) 87 Cal.App.3d 327, 333.)

ANALYSIS

Plaintiff establishes the first requirement of Corporations Code section 17701.16 subdivision (c), but not the second.

The LLC’s Statement of Information, filed with the Secretary of State on August 7, 2025, designates Cobie Lavender (Lavender) as the agent for service of process. (Griffin Decl. ¶ 2.) It lists the LLC’s business address, the agent’s address, and its sole manager and member, all at 724 E

113th Street, Los Angeles. (Griffin Decl. ¶ 3, Ex. A.) A registered process server attempted personal service there on November 28, 2025, but was unable to effect service. The address is a residence; the occupant stated they did not know Lavender, and the neighbors did not recognize the name. (Griffin Decl. ¶¶ 6-7, Ex. B.) Public inmate records establish that Lavender is held at the Metro West Detention Center in Miami, Florida (identified in the records as MWDC) and has been since June 11, 2025, so he cannot be found at the designated address. (Griffin Decl. ¶ 9, Ex. D.)

However, the methods of service identified in Corporations Code section 17701.16 subdivision (c) are not confined to service within California. A summons may be served on a person outside this state but within the United States as provided in the chapter governing service of summons, which includes those methods. (Code Civ. Proc., § 413.10, subd. (b).) Indeed, the Judicial Council Comment to Code of Civil Procedure section 415.30 specifically notes that service by mail under that section may be used to deliver process to a person within or outside this state. (Judicial Council of Cal. com., reprinted at West's Ann. Code Civ. Proc. (2026) foll. § 415.30.)

Here, Plaintiff knows Lavender's location, but the personal-service attempt was made at the Los Angeles residence, and both Notice and Acknowledgment of Receipt packages under section 415.30 were mailed only to Los Angeles addresses. (Griffin Decl. ¶¶ 6-8, Exs. B, C.) Section 415.30 mail service could have been directed to Lavender at the facility, but was not, and nothing in the record reflects any attempt to reach him there.

Transamerica Title Ins. Co. v. Hendrix (1995) 34 Cal.App.4th 74 (Transamerica) illustrates the point. There, the plaintiff, representing that the defendant's address was unknown, obtained an order authorizing service by publication, even though the plaintiff knew he received mail at a post office box. (*Id.* at p. 745.) The Court of Appeal reversed the default, holding that the known mailing address had to be tried before the court could resort to publication. (*Ibid.*)

Here, as in *Transamerica*, Plaintiff seeks a constructive method of service while holding an unused means of reaching the person to be served. On this record, the Court does not find that process cannot be served with reasonable diligence, so service on the Secretary of State is not yet authorized. Accordingly, the Motion is denied.

CONCLUSION

Plaintiff's Motion for Order Allowing Service of Corporate

Defendant Davontay Robins, LLC, via the Secretary of State is denied without prejudice.